ANNOTATED AGENDA

BERKELEY CITY COUNCIL MEETING

Tuesday, January 21, 2025
6:00 PM

SCHOOL DISTRICT BOARD ROOM - 1231 ADDISON STREET, BERKELEY, CA 94702

ADENA ISHII, MAYOR

Councilmembers:

DISTRICT 1 – RASHI KESARWANI
DISTRICT 2 – TERRY TAPLIN
DISTRICT 3 – BEN BARTLETT
DISTRICT 4 – IGOR TREGUB
DISTRICT 5 – SHOSHANA O'KEEFE
DISTRICT 6 – BRENT BLACKABY
DISTRICT 7 – CECILIA LUNAPARRA
DISTRICT 8 – MARK HUMBERT

This meeting will be conducted in a hybrid model with both in-person attendance and virtual participation. Live captioned broadcasts of Council meetings are available on B-TV (Channel 33) and via internet video stream at http://berkeley.granicus.com/MediaPlayer.php?publish_id=1244. All Council meetings are recorded.

*To access the meeting remotely use this URL: https://cityofberkeley-info.zoomgov.com/j/1608180534. To request to speak, use the "raise hand" function in Zoom. To join by phone: Dial **1-669-254-5252 or 1-833-568-8864 (Toll Free)** and enter **Meeting ID: 160 818 0534.** To provide public comment, Press *9 and wait to be recognized by the Chair. To submit a written communication for the public record, email council@berkeleyca.gov.*

This meeting will be conducted in accordance with the Brown Act, Government Code Section 54953. Any member of the public may attend this meeting, however, if you are feeling sick, please do not attend the meeting in person. The City Council may take action related to any subject listed on the Agenda.

Pursuant to the City Council Rules of Procedure and State Law, the presiding officer may remove, or cause the removal of, an individual for disrupting the meeting. Prior to removing an individual, the presiding officer shall warn the individual that their behavior is disrupting the meeting and that their failure to cease their behavior may result in their removal. The presiding officer may then remove the individual if they do not promptly cease their disruptive behavior. "Disrupting" means engaging in behavior during a meeting of a legislative body that actually disrupts, disturbs, impedes, or renders infeasible the orderly conduct of the meeting and includes, but is not limited to, a failure to comply with reasonable and lawful regulations adopted by a legislative body, or engaging in behavior that constitutes use of force or a true threat of force.

***Government Code Section 84308 (Levine Act)** - Parties to a proceeding involving a license, permit, or other entitlement for use are required to disclose if they made contributions over $500 within the prior 12 months to any City employee or officer. Parties and participants with a financial interest are prohibited from making more than $500 in contributions to a decisionmaker for the 12 months after the final decision is rendered on the proceeding. The above contribution disclosures and restrictions do not apply when the proceeding is competitively bid, or involves a personnel or labor contract. For more information, see Government Code Section 84308.*

Preliminary Matters

Roll Call: 6:16 p.m.

Present: Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii

Absent: Bartlett

Land Acknowledgement Statement: *The City of Berkeley recognizes that the community we live in was built on the territory of xučyun (Huchiun (Hooch-yoon)), the ancestral and unceded land of the Chochenyo (Cho-chen-yo)-speaking Ohlone (Oh-low-nee) people, the ancestors and descendants of the sovereign Verona Band of Alameda County. This land was and continues to be of great importance to all of the Ohlone Tribes and descendants of the Verona Band. As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shellmound, and the Ohlone people who continue to reside in the East Bay. We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded stolen land since the City of Berkeley's incorporation in 1878. As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today. The City of Berkeley will continue to build relationships with the Lisjan Tribe and to create meaningful actions that uphold the intention of this land acknowledgement.*

Ceremonial Matters: None

City Manager Comments: None

City Auditor Comments: City Auditor Jenny Wong gave a presentation to Council on Item 29, Audit Follow-up Status Update.

Public Comment on Non-Agenda Matters: 10 speakers

Public Comment by Employee Unions: 1 speaker

Consent Calendar

Public Comment on Consent Calendar and Information Items Only: 34 speakers.

Action: M/S/C (Tregub/Blackaby) to adopt the Consent Calendar in one motion except as indicated.
Vote: Ayes – Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Bartlett.

Recess Items

1. **Contract No. 105938-1 Amendment: Koefran Industries for Animal Disposal Services**
   From: City Manager
   Recommendation: Ratify the action taken by the City Manager during recess to extend and increase the current contract with Koefran Industries to provide weekly removal and disposal of deceased animals from the Berkeley Animal Care Services (BACS) through 2027, increasing the contract amount by $42,840 for a new total contract amount not to exceed $274,440.
   Financial Implications: See report
   Contact: Peter Radu, City Manager's Office, (510) 981-7000
   Action: Adopted Resolution No. 71,630–N.S.

2. **Contract Amendments: Contract No. 32000146 Vestis Services, LLC (formerly Aramark Uniform Services) for Uniforms and Laundering & Contract No. 32300013 Herc Rental Inc. for Rental Equipment and Products**
   From: City Manager
   Recommendation: Ratify the action taken by the City Manager during the City Council recess to increase Contract Nos. 32000146 and 32300013 by $500,000 each, for a not to exceed amount of $1,517,000 for contract #32000146 and $1,235,000 for contract #32300013.
   Financial Implications: See report
   Contact: Henry Oyekanmi, Finance, (510) 981-7300
   Action: Adopted Resolution No. 71,631–N.S.

3. **Contract No. 32400177 Amendment - Health Officer Coverage Contract – Dr. Lisa B. Hernandez**
   From: City Manager
   Recommendation: Adopt a Resolution authorizing the City Manager or his designee to amend Contract No. 32400177 with Dr. Lisa B. Hernandez to increase by $20,000 for a total not to exceed amount (NTE) of $120,000.
   Financial Implications: See report
   Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
   Action: Adopted Resolution No. 71,632–N.S.

Recess Items

4. Contract: Rosas Brothers Construction for FY 2025 Curb Ramp Improvement Project (Specification No. 25-11679-C)
From: City Manager
Recommendation: Adopt a Resolution ratifying the action taken by the City Manager during recess: approving plans and specifications for the FY 2025 Curb Ramp Improvement Project; accepting the bid of Rosas Brothers Construction as the lowest, responsive and responsible bidder; and authorizing the City Manager to execute a contract and any amendments, extensions, or other change orders until project completion, in accordance with the approved plans and specifications in an amount not to exceed $2,683,395, which includes a 10% contingency.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,633–N.S.

Consent Calendar

5. Contract No. 32400129 Amendment: IGM Technology Corporation for Digital Budget Book Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager, or their designee, to amend Contract No. 32400129 with IGM Technology Corporation to add $45,203 for the annual service fees and extend the contract term to January 31, 2027 with a not to exceed amount of $85,203.
Financial Implications: See report
Contact: Sharon Friedrichsen, Budget Manager, (510) 981-7000
Action: Adopted Resolution No. 71,634–N.S.

6. Contract with Records Xpress of California, LLC dba Access Information Management for Offsite Records Management Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a new contract with Records Xpress of California, LLC. dba Access Information Management for off-site record management services. The new contract is for a five-year period beginning December 1, 2024 through November 30, 2029, for a total contract amount not to exceed $330,000.
Financial Implications: See Report
Contact: Mark Numainville, City Clerk, (510) 981-6900
Action: Adopted Resolution No. 71,635–N.S.

Consent Calendar

7. Contract: Julie W. Chang Public Artwork Commission for Willard Clubhouse
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a contract and any necessary amendments with artist Julie W. Chang for an amount not to exceed $150,000 for a public art commission of a mosaic mural on the 18'-5" wide by 10' tall interior lobby wall located in the Willard Clubhouse at the southeast corner of Willard Park at 2720 Hillegass Avenue, between Derby Street and Stuart Street.
Financial Implications: See report
Contact: Eleanor Hollander, Economic Development, (510) 981-7530
Action: Adopted Resolution No. 71,636–N.S.

8. Acceptance of a $40,000 Grant from the National Endowment for the Arts to enhance Civic Arts Grant Programing
From: City Manager
Recommendation: Adopt a Resolution accepting a $40,000 grant from the National Endowment for the Arts (NEA). The grant will be used to support a Civic Arts grant program totaling $80,000 to be expended in Fiscal Year 2026 (FY26). This will be the second annual implementation of the new program designed to support the following types of arts and cultural programming in the City of Berkeley: Nonprofit (not-art specific) organizations located in the City of Berkeley to produce arts/cultural programming in the City of Berkeley led by a partnering arts organization or teaching artist; or Arts nonprofit organizations located in the Greater Bay Area (outside of Berkeley) to produce arts/cultural programming taking place in the City of Berkeley.
Financial Implications: See report
Contact: Eleanor Hollander, Economic Development, (510) 981-7530
Action: Adopted Resolution No. 71,637–N.S.

9. Formal Bid Solicitations and Request for Proposals Scheduled for Possible Issuance After Council Approval on January 21, 2025
From: City Manager
Recommendation: Approve the request for proposals or invitation for bids (attached to staff report) that will be, or are planned to be, issued upon final approval by the requesting department or division. All contracts over the City Manager's threshold will be returned to Council for final approval.
Financial Implications: See report
Contact: Henry Oyekanmi, Finance, (510) 981-7300
Action: Approved recommendation.

Consent Calendar

10. Authorized Agent Update for FEMA Public Assistance
From: City Manager
Recommendation: Adopt a Resolution updating Resolution 69,682-N.S. authorizing the City Manager, Deputy City Managers, and AG Witt, LLC to engage for another three years with the Federal Emergency Management Agency and the Governor's Office of Emergency Services regarding grants applied for by the City of Berkeley for the FEMA-4482-DR-CA California COVID-19 Pandemic, as well as future disasters.
Financial Implications: See report
Contact: David Sprague, Fire, (510) 981-3473
Action: Adopted Resolution No. 71,638–N.S.

11. Contract No. 32100126 Amendment: Anjanette Scott LLC for Housing Consultant Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager or designee to execute an amendment to Contract No. 32100126 with Anjanette Scott LLC increasing the contract by $30,000 for consulting services in a total amount not to exceed $205,000, and extending the contract end date of June 30, 2026.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,639–N.S.

12. Housing Trust Fund Recommendations for the Martin Luther King Jr. House Predevelopment Funds and Haste Street Rehabilitation Funds
From: City Manager
Recommendation: Adopt a Resolution:
1. Authorizing the City Manager or designee to disburse up to $320,000 of Insight Housing's loan for Martin Luther King, Jr. (MLK) House for predevelopment;
2. Reserving $500,000 for the Northern Community Land Trust's (NCLT) rehabilitation of 2207 Haste Street; and
3. Authorizing the City Manager or designee to execute all original or amended documents or agreements to effectuate these actions.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400
Action: Adopted Resolution No. 71,640–N.S.

Consent Calendar

13. Contract No(s) 32400134, 32400135 and 32400145 Amendment: As- Needed Derelict Vessel/Debris Removal and Disposal Services at the Berkeley Marina
From: City Manager
Recommendation: Adopt a Resolutions authorizing the City Manager to amend contract no. 32400134 with Lind Marine, contract no. 32400135 with Silverado Contractors, and contract no. 32400145 with Power Engineering to remove and dispose derelict and abandoned vessels at the Berkeley Marina by increasing the contract amount by $55,000 for a total not-to-exceed amount of $217,000, as well as extending the contract to September 30, 2026.
Financial Implications: See report
Contact: Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: Adopted Resolution No. 71,641–N.S. (Lind Marine), Resolution No. 71,642–N.S. (Power Engineering), and Resolution No. 71,643–N.S. (Silverado).

14. Contract No. 32100143 Amendment: ACTC/Caltrans for Construction of Gilman Street Sanitary Sewer Line Extension
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to amend Contract No. 32100143 with the Alameda County Transportation Commission (Alameda CTC/Caltrans) for the construction of a sanitary sewer line on Gilman Street (Project) to increase the contract amount by $86,000, for a total not-to-exceed contract amount of $806,000.
Financial Implications: See report
Contact: Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: Adopted Resolution No. 71,644–N.S.

15. Donation from the Friends of the Berkeley Animal Care Shelter
From: City Manager
Recommendation: Adopt a Resolution accepting a cash donation of up to $16,000 from the Friends of the Berkeley Animal Care Shelter to install new fencing for the animal training area at Aquatic Park.
Financial Implications: See report
Contact: Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700
Action: Adopted Resolution No. 71,645–N.S.

16. Contract - Benchmark Analytics for Early Intervention System Platform
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute a contract and any amendments with Benchmark Analytics (Contractor) to provide a cloud-based Early Intervention System (EIS) platform from February 3, 2025 to February 3, 2027, in an amount not to exceed $200,000 with an option to extend for two additional years, for a total contract amount not to exceed $400,000.
Financial Implications: See report
Contact: Jennifer Louis, Police, (510) 981-5900
Action: Adopted Resolution No. 71,646–N.S.

Consent Calendar

17. Contract No. 100692-5 Amendment: Serological Research Institute for DNA Testing Services
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to amend Contract No. 100692-5 and any necessary future amendments with Serological Research Institute (SERI) for the Police Department, increasing the contract amount by $2,000,000 for a total not to exceed $5,000,000 and expand the contract expiration two years from June 30, 2025 to June 30, 2027.
Financial Implications: See report
Contact: Jennifer Louis, Police, (510) 981-5900
Action: Adopted Resolution No. 71,647–N.S.

18. Contract No. 31900143 Amendment: Passport Labs Incorporated for a Parking Management System
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to amend Contract No. 31900143 and any necessary future amendments with Passport Labs Inc. to provide a Parking Management System for the Police Department, extending the term by another 18 months to August 4, 2027 and increasing this contract by $2,000,000 for a total not to exceed $7,365,545.
Financial Implications: See report
Contact: Jennifer Louis, Police, (510) 981-5900
Action: Adopted Resolution No. 71,648–N.S.

19. Agreements with Union Pacific Railroad for Reimbursement for Construction of Safety Improvements for Pedestrians, Cyclists and Vehicular Traffic at Addison and Bancroft railroad crossings
From: City Manager
Recommendation: Adopt a Resolution authorizing the City Manager to execute two reimbursement agreements and any amendments with Union Pacific Railroad Company (UPRR) to construct all necessary safety improvement elements at Addison Street and Bancroft Way railroad crossings subject to reimbursement by the City for actual costs incurred.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,649–N.S.

Consent Calendar

20. Purchase Order: California Automotive Retailing Group dba Dublin Chevrolet for Two 2025 Chevrolet Blazer EV Police Pursuit Vehicles
From: City Manager
Recommendation: Adopt a Resolution satisfying the requirements of City Charter allowing the City to participate in Alameda County Purchase Order Contract, Master Contract No.901979 and authorizing the City Manager to execute a purchase order for two (2) 2025 Chevrolet Blazer EV Police Pursuit vehicles with California Automotive Retailing Group dba Dublin Chevrolet in an amount not to exceed $220,000.
Financial Implications: See report
Contact: Terrance Davis, Public Works, (510) 981-6300
Action: Adopted Resolution No. 71,650–N.S.

21. Appointment of Lisa Teague to the Mental Health Commission
From: Mental Health Commission
Recommendation: Adopt a Resolution approving the recommendation for appointment of Lisa Teague to the Mental Health Commission as a representative of the Special Interest Category, Consumer. Lisa Teague 3-year term will begin on January 22, 2025 and end on January 21, 2028.
Financial Implications: See report
Contact: Jamie Works-Wright, Commission Secretary, (510) 981-5400
Action: Adopted Resolution No. 71,651–N.S.

Council Consent Items

22. Seating Arrangement for the Council, Vice Mayor Term Revision, Mayoral Appointment to City/UC/Student Relations Committee, and 2025 Council Appointments
From: Mayor Ishii (Author)
Recommendation:
Rescind Resolution No. 71,393-N.S. and adopt a resolution that establishes the seating arrangement for the City Council.
Rescind Resolution 70,631-N.S. and adopt a Resolution establishing a schedule of appointments for the office of Vice-President of the Council at the discretion of the Mayor and for these appointments to be established at the first Council meeting in December every year or the proceeding month's council meeting after a new Mayor is sworn in.
Adopt a Resolution appointing Mayor Ishii as the alternate on the 4x6 City/UC/Student Relations Committee.
Adopt a Resolution approving the appointment of Council representatives to City Council Standing Policy Committees, Partnership Committees, Regional Bodies, and Liaisons to the City Boards and Commissions for a term ending on January 31, 2026 or until new appointments are made.
Financial Implications: See report
Contact: Adena Ishii, Mayor, (510) 981-7100

Action: M/S/Failed (Ishii/Lunaparra) to adopt Resolutions for Seating Assignments, Vice-President Rotation, 4x6 Committee Alternate, and Representative Appointments as revised in Supplemental Communications Packet #2 by Mayor Ishii to add the AC Transit-City of Berkeley Inter-Agency Liaison Committee appointments and further amended on the dais to switch the appointments of Councilmembers Bartlett and Blackaby on the Public Safety Committee and the Land Use Housing and Economic Development Committee.
Vote: Ayes – O'Keefe, Lunaparra, Ishii; Noes – Kesarwani, Taplin, Blackaby, Humbert; Abstain – Tregub; Absent – Bartlett

Action: Moved to Action Calendar. 0 speakers. M/S/Carried (Taplin/Kesarwani) to:
1. Adopt Resolution No. 71,652–N.S. (Seating Assignments)
2. Adopt Resolution No. 71,653–N.S. (Vice-President Rotation) amended to change the rotation order to be determined by length of tenure starting from longest to shortest and to break ties in tenure with the higher number of votes received in the previous election.
3. Adopt Resolution No. 71,654–N.S. (4x6 Committee Alternate)
4. Adopt Resolution No. 71,655–N.S. (Representative Appointments) as revised in Supplemental Communications Packet #2 by Mayor Ishii to add the AC Transit-City of Berkeley Inter-Agency Liaison Committee appointment; further amended on the dais to switch the appointments of Councilmembers Bartlett and Blackaby on the Public Safety Committee and the Land Use Housing and Economic Development Committee; and further amended on the dais to switch the appointments of

Councilmembers Humbert and Lunaparra on the Agenda & Rules Committee and the Land Use Housing and Economic Development Committee
Vote: Ayes – Kesarwani, Taplin, Tregub, Blackaby, Humbert; Noes – O'Keefe, Lunaparra, Ishii, Abstain – None; Absent – Bartlett.

Action Calendar – Public Hearings

23. California Municipal Finance Authority Bond Financing for 2001 Ashby Avenue
From: City Manager
Recommendation: Conduct a public hearing under the requirements of the Tax Equity and Fiscal Responsibility Act of 1982 (TEFRA) and the Internal Revenue Code of 1986, as amended, and upon conclusion, adopt a Resolution approving the issuance of additional bonds, increasing the total amount of bonds to be issued for this project, by the California Municipal Finance Authority (CMFA) for the benefit of the 2001 Ashby Avenue rental housing development.
Financial Implications: See report
Contact: Scott Gilman, Health, Housing, and Community Services, (510) 981-5400

Public Testimony: The Mayor opened the public hearing. 0 speakers.
M/S/C (Ishii/Tregub) to close the public hearing.
Vote: Ayes – Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Bartlett.

Action: M/S/C (Tregub/Taplin) to adopt Resolution No. 71,656–N.S.
Vote: Ayes – Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Bartlett.

24. Changes to Select Recreation Facilities and Camps Program Fees
From: City Manager
Recommendation: Conduct a public hearing and upon conclusion, adopt a Resolution approving new fees and increasing current fees for select recreation programs and facility rentals; and rescinding Resolution No. 71,356 N.S. and all amendatory resolutions
Financial Implications: See report
Contact: Scott Ferris, Parks, Recreation and Waterfront, (510) 981-6700

Public Testimony: The Mayor opened the public hearing. 2 speakers.
M/S/C (Ishii/Lunaparra) to close the public hearing.
Vote: Ayes – Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Bartlett.

Action: M/S/C (Ishii/Lunaparra) to adopt Resolution No. 71,657–N.S.
Vote: Ayes – Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Bartlett.

Action Calendar – Public Hearings

25. ZAB Appeal: 2708 Prince Street, Use Permit ZP2024-0024
From: City Manager
Recommendation: Conduct a public hearing, and upon conclusion, adopt a Resolution affirming the Zoning Adjustments Board (ZAB) decision to approve Use Permit ZP2024-0024 to demolish a single-family home and accessory building (garage), and construct a 2-story (24 feet in height) 3,118 square-foot duplex, and dismiss the appeal.
Financial Implications: See report
Contact: Jordan Klein, Planning and Development, (510) 981-7400

Action: Appeal withdrawn by the appellants. No action taken by the City Council. The decision of the Zoning Adjustments Board stands.

Council Action Items

26. Expanding Homeownership Opportunities for Middle-Income Earners
From: Councilmember Kesarwani (Author)
Recommendation: Refer to the City Manager to develop modifications to Berkeley Municipal Code Title 21 (Subdivisions) and refer to the City Manager and Planning Commission to develop modifications to Title 23 (Zoning) to enhance ownership opportunities for middle housing–in alignment with unanimous Council direction for a Middle Housing Ordinance and allowances under Chapter 783, Statutes of 2023 (S.B. 684, Caballero).
Financial Implications: See report
Contact: Rashi Kesarwani, Councilmember, District 1, (510) 981-7110
Action: Moved to Consent Calendar. Councilmembers Humbert, Bartlett, and Lunaparra added as co-sponsors. Approved recommendation as submitted in Supplemental Communications Packet #2 by Councilmember Kesarwani.

Council Action Items

27. Reaffirming Berkeley as a Sanctuary City
From: Councilmember Blackaby (Author), Mayor Ishii (Co-Sponsor), Councilmember Lunaparra (Co-Sponsor), Councilmember Taplin (Co-Sponsor)
Recommendation: Adopt a Resolution reaffirming Berkeley as a Sanctuary City and asking the City Clerk to send a copy to each City Department Director, requesting they inform their staff of the City's Sanctuary City standing and the City's policies and procedures regarding staff interaction with U.S. Immigration & Customs Enforcement (ICE) related to enforcement of federal immigration law.
Additionally, refer to the City Attorney to explore the possibility of pledging the City's legal support to help "sensitive sites" defend themselves against civil litigation.
Additionally, the Mayor will create a taskforce of Councilmembers, Community Based Organizations (CBOs), immigration and civil rights organizations, faith leaders, legal experts, school and university officials, and community activists to continually assess threats to Berkeley's immigrant communities and participate in the process of codifying Berkeley's Sanctuary protections through a city ordinance.
Financial Implications: See report
Contact: Brent Blackaby, Councilmember, District 6, (510) 981-7160
Action: Moved to Consent Calendar. Adopted Resolution No. 71,658–N.S. as revised in Supplemental Communications Packet #1 by Councilmember Blackaby.

28. Budget Referral: Curb Marking and Preventative Infrastructure Upgrades at High-Risk Intersections in Accordance with the New California Daylighting Law, AB 413
From: Councilmember Lunaparra (Author), Councilmember Humbert (Co-sponsor)
Recommendation: Refer $1,250,000 to the June budget process (FY26 Mid-Biennial Update) to provide the City of Berkeley Public Works Department with necessary funds for curb marking and preventative infrastructure upgrades in accordance with the new California Daylighting Law, AB 413.
Financial Implications: See report
Contact: Cecilia Lunaparra, Councilmember, District 7, (510) 981-7170
Action: Moved to Consent Calendar. Approved recommendation as revised in Supplemental Communications Packet #1 by Councilmember Lunaparra.

Information Reports

29. Audit Follow-up Status Update
From: Auditor
Contact: Jenny Wong, Auditor, (510) 981-6750
Action: Received and filed with the presentation submitted in Supplemental Communications Packet #1 by the City Auditor.

Public Comment – Items Not Listed on the Agenda - 2 speakers.

Adjournment

Action: M/S/C (Ishii/Blackaby) to adjourn the meeting in memory of those that have lost their lives in the fires in Southern California.
Vote: Ayes – Kesarwani, Taplin, Tregub, O'Keefe, Blackaby, Lunaparra, Humbert, Ishii; Noes – None; Abstain – None; Absent – Bartlett.

Adjourned at 8:46 p.m.

Communications

Welcome
1. Roger Pritchard

Encampment Sweeps and Concerns
2. Elizabeth Mackenzie
3. Isabella J. Lake
4. Moni T. Law
5. Alex Stephens
6. Daisy Ryan
7. Lillian Robles
8. Russbumper (2)
9. Gale Smith
10. Peter Radu
11. Robb M Walker
12. Claudia Qi
13. Betty Chu
14. Jeff Morgan
15. Sam Gooch
16. Craig Nagasawa
17. Luther Miller

Porta Potties
18. Negeene Mosaed
19. Megan
20. Elania Nanopoulos
21. Ward Kanowsky
22. Sarah Donoghue
23. Summer Brenner (2)
24. Andrea Henson
25. Russbumper
26. Elana Auerbach
27. T. Freeman

Social Housing in SF

28. Summer Brenner

Measure BB Impact
29. Matt Wickland
30. James Williams

Restaurant/Food Facility Inspection
31. David Lerman

Local Violence Concerns
32. David Soffa

Harrison House
33. Avalonia Williams

Middle Class
34. A Successful Asian Woman

Agenda and Rules Committee Concern
35. Dorothea Dorenz

Gilman District
36. Jeff Morgan

Rose and Josephine
37. Wolfram Arnold
38. Christopher Riederer on behalf of The Neighbors of North Berkeley

Mural Concerns
39. Kathy Baylor
40. Judith Smith

UA Theater
41. Jon Winet
42. Lois Yuen
43. Summer Brenner
44. Jill Korte (2)
45. Barbara Hadenfeldt
46. Charlene M. Woodcock
47. Melanie Bowden
48. Jane Stillwater

Telegraph Holiday Fair
49. Laly Pena (2)

UC Berkeley Class
50. 6 Similarly worded form letters

Safety Concern
51. Carl Martineau

Berkeley Asphalt Operations
52. Pear Michaels (2)

Restroom Installation Concern
53. Nicola Spence

Potential Landmark Designation
54. Todd Williams (3)
55. Fatema Crane

Berkeley Community Meal
56. Rashi Kesarwani
57. Andrea Henson

Street Paving
58. Siddharth Kiyawat

Affordable Housing
59. Barbara Hadenfeldt

City Concern
60. Kaethe Weingarten
61. Molly Freeman

Haste & Dwight Repaving
62. The members of Telegraph For People

Safety Upgrades
63. Jordan Burns
64. Dave

Parking at Marina
65. Paul Kamen

3rd and Harrison
66. Maria Yates

Safety Concerns on Adeline St.
67. Nhan Nguyen Le, Teresa Clarke, and Bruce Curtis

Police Report
68. Adam Warlow

Women's March
69. Hali Hammer (2)

Cesar Chavez Park and Dogs
70. Mary Sears

Wood Burning
71. Clifford Fred

Tobacco Prevention Coalition
72. Carol Denney

Parking in the Red Zone
73. Jessica Phrogus

Local Culture
74. Summer Brenner

Civil Defense Structure
75. Adam Messinger

Tourist Attractions
76. John L. Haracz (2)

Transportation Manager Position Description
77. Ben Gerhardstein
78. Wahid Amiri

Waterfront Planning
79. Jim McGrath

Ohlone Greenway Project
80. Janice Schroeder

Hopkins St.
81. Bruce Buckelew

Winter News
82. Walter Wood

Black Repertory Group
83. Mona VScott (2)

3008 Russell at Domingo
84. Inetjalopy (5)

Electric Bikes and Scooters

85. Linda Franklin
86. Laarni Mathias (2)
87. Stephanie Lauren
88. Robert Byler
89. Jeff L (Veo)

Middle East Conflict
90. Russbumper (3)
91. Hollie Roizman

URL's
92. Russbumper (24)
93. Josh Atwood (3)
94. Glen

Forwards
95. Eid (13)
96. Josh Atwood (2)
97. Vivian Warkentin
98. Russbumper

Supplemental Communications and Reports 1

Item #26: Expanding Homeownership Opportunities for Middle-Income Earners
99. Zelda Bronstein
100. Toni Mester

Item #27: Reaffirming Berkeley as a Sanctuary City
101. Revised agenda material submitted by Councilmember Brent Blackaby

Item #28: Budget Referral: Curb Marking and Preventative Infrastructure Upgrades at High-Risk Intersections in Accordance with the New California Daylighting Law, AB 413
102. Supplemental agenda material submitted by Councilmember Cecilia Lunaparra

Item #29: Audit Follow-up Status Update
103. Supplemental agenda material submitted by Jenny Wong, City Auditor

Supplemental Communications and Reports 2

Item #22: Seating Arrangement for the Council, Vice Mayor Term Revision, Mayoral Appointment to City/UC/Student Relations Committee, and 2025 Council Appointments
104. Revised material, submitted by Mayor Ishii

Item #25: ZAB Appeal: 2708 Prince Street, Use Permit ZP2024-0024
105. Robert Riemer and Sheila Moran

Item #26: Expanding Homeownership Opportunities for Middle-Income Earners

106. Revised material, submitted by Councilmember Kesarwani
107. Alfred Twu
108. John S. Robey
109. David Cohn
110. Isabelle Gaston (2)
111. Tamara Abrams
112. Jim Haydel
113. Helaine Kaplan Prentice
114. Cindy Larson
115. Karen and Robert Holtermann
116. Yen Trac
117. Jennifer Lombardi (2)
118. Wendy Pulling
119. Bruce A. Smith
120. Dante Lombardi
121. Jack Kurzweil
122. Rochelle Blumenfeld
123. Milton McClaskey and Audrey Spector
124. Bob and Irene Byrne
125. Lee Bishop
126. 9 Substantially Similar Form Letters

Item #27: Reaffirming Berkeley as a Sanctuary City

127. Peace and Justice Commission
128. Grace Morizawa
129. Grant Thompson
130. Carol Rothman
131. Adrianne Bank

Item #28: Budget Referral: Curb Marking and Preventative Infrastructure Upgrades at High-Risk Intersections in Accordance with the New California Daylighting Law, AB 413

132. Liza Lutzker, on behalf of Walk Bike Berkeley

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Item #26: Expanding Homeownership Opportunities for Middle-Income Earners

99. Elizabeth Dodge
100. Kathleen M. Crandall
101. Micky Duxbury
102. Joey Consos
103. Phyllis Mace
104. 34 Substantially similar form letters

Item #27: Reaffirming Berkeley as a Sanctuary City

105. Jessica Montes
106. Julie Twichell
107. Russbumper

Item #29: Audit Follow-up Status Update

108. Caitlin Palmer on behalf of the City Auditor's office

Miscellaneous Communications

109. Eid